ERIC BRAKEBILL JONES
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Defendant in Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – PASADENA COURTHOUSE

GARY W. KEARNEY, an individual, Plaintiff, vs. ERIC BRAKEBILL JONES, et al., Defendants.	**Case No. 26PDUD00325** **NOTICE OF FILING OF RELATED UNLIMITED CIVIL ACTION; SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE** **[Evid. Code § 452(d); Asuncion v. Superior Court]**

Date: February 19, 2026

Time: 1:30 P.M.

Dept: R

Action Filed: January 28, 2026

TO THE COURT AND ALL PARTIES:

PLEASE TAKE NOTICE that on February 12, 2026, subsequent to the filing of Defendant's Demurrer, a critical jurisdictional event occurred which mandates this Court's immediate attention. Defendant has filed and served a Notice of Related Case (CM-015) in this action, formally linking this summary proceeding to the prior-pending Unlimited Civil Action: Sayegh v. Kearney (LASC Case No. 26NNCV00412).

I. BASIS FOR SUPPLEMENTAL FILING

This filing is submitted pursuant to the Court's inherent authority to consider new controlling facts that arise after statutory briefing deadlines. The Related Case Notice could not have been presented prior to its filing on February 12, 2026.

II. JUDICIAL NOTICE OF "FIRST-IN-TIME" JURISDICTION

Defendant requests this Court take Judicial Notice (Evid. Code § 452(d)) of the court records in Case No. 26NNCV00412.

Civil Case Filed: January 21, 2026.

UD Case Filed: January 28, 2026.

Because the Civil Court acquired jurisdiction first, and because that action seeks rescission of the lease based on illegality (Temple City Municipal Code § 9-1E-2), the doctrine of Exclusive Concurrent Jurisdiction applies.

III. THE ASUNCION MANDATE

Under Asuncion v. Superior Court (1980) 108 Cal.App.3d 141, this Court should not adjudicate possession in a summary proceeding when complex issues of title and fraud are already pending in a superior jurisdiction. Proceeding here risks inconsistent rulings regarding the validity of a lease that the Civil Court may declare void ab initio.

IV. CONCLUSION

Defendant respectfully requests this Court STAY this Unlawful Detainer action pending resolution of the First-Filed Unlimited Civil Action.

DATED: February 13, 2026

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ERIC BRAKEBILL JONES

Defendant in Pro Per